

PHOTIFY

PERSONAL DATA PROTECTION AND PRIVACY POLICY

Comprehensive Privacy Notice — KVKK & GDPR Compliant

Version 2.3 | Effective Date: 03/06/2026

Law No. 6698 on Protection of Personal Data (KVKK)

EU Regulation 2016/679 General Data Protection Regulation (GDPR)

California Consumer Privacy Act (CCPA) — For Informational Purposes

1. INTRODUCTION AND PURPOSE

Photify is a mobile application that automatically delivers event photographs to attendees using AI-powered facial recognition technology ("Application" or "Service"). In this context, Photify processes various categories of personal data belonging to its users, including special categories of personal data such as facial images.

This Personal Data Protection and Privacy Policy ("Policy") has been prepared to explain the purposes and legal bases for which Photify collects, stores, and shares personal data, as well as how data subjects may exercise their rights.

This Policy has been prepared in accordance with: Law No. 6698 on the Protection of Personal Data ("KVKK") and related secondary legislation in force in Turkey; EU Regulation 2016/679 General Data Protection Regulation ("GDPR"); and the California Consumer Privacy Act ("CCPA") applicable in the State of California.

Your commencement of use of the Photify Application and creation of an account signifies that you have read and understood the contents of this Policy. Special categories of personal data such as biometric data are processed only after your explicit consent has been obtained.

2. IDENTITY AND CONTACT DETAILS OF THE DATA CONTROLLER

Pursuant to Article 3(1)(i) of KVKK and Article 4(7) of GDPR, the natural person holding the status of data controller is identified below. Within the scope of this Policy, the term "Photify" refers to the trade mark and service name used by natural person merchant Furkan Sönmez; the data controller in law is the said natural person.

2.1 Data Controller

Full Name	Furkan Sönmez
Address	Vadi Istanbul Park Etai, Ayazağa, Kemerburgaz Cd. D:7A Blok, 34475 Sarıyer/İstanbul
E-mail	info@photify.studio
Website	www.photify.studio

2.2 Data Controller Contact Person (KVKK)

For KVKK-related applications, please contact:

- Full Name: Furkan Sönmez
- E-mail: kvkk@photify.studio
- Postal Address: Vadi Istanbul Park Etai, Ayazağa, Kemerburgaz Cd. D:7A Blok, 34475 Sarıyer/İstanbul

2.3 Data Protection Officer (DPO)

Photify does not currently meet the thresholds requiring formal appointment of a Data Protection Officer under GDPR Article 37; however, the Data Controller bears direct responsibility for the conduct of data protection processes. Enquiries regarding data protection may be directed to kvkk@photify.studio. Upon incorporation as a legal entity and expansion of operational scale, a formal Data Protection Officer will be appointed and this Policy will be updated accordingly.

3. DEFINITIONS

Terms used in this Policy shall bear the following meanings:

- **Personal Data:** Any information relating to an identified or identifiable natural person (KVKK Art. 3; GDPR Art. 4/1).
- **Special Categories of Personal Data:** Sensitive data within the scope of KVKK Art. 6 and GDPR Art. 9, including biometric data, race, ethnic origin, health, sexual life, religion, political opinion, and trade union membership.
- **Biometric Data:** Data derived from the specific technical processing of the physical, physiological, or behavioural characteristics of a natural person which allows or confirms the unique identification of that person. In the context of Photify: facial images and face vectors (face embeddings).
- **Data Subject:** The natural person whose personal data is processed.
- **Data Controller:** The party that determines the purposes and means of processing personal data — in the context of this Policy, natural person merchant Furkan Sönmez operating under the trade mark “Photify”.
- **Data Processor:** A third party that processes personal data on behalf of the data controller (e.g., AWS, İyzico).
- **Processing:** Any operation performed on personal data, whether or not by automated means, including collection, recording, storage, alteration, disclosure, transfer, acquisition, classification, or blocking of use.
- **Explicit Consent:** Freely given, informed, and specific consent in relation to a particular subject matter.
- **Face Vector (Face Embedding):** A numerical vector representation extracted from a facial image by a mathematical algorithm, which cannot be reverse-engineered to produce the original photograph.
- **Event:** An organisation managed on Photify, such as a wedding, engagement ceremony, graduation ceremony, birthday party, or corporate event.
- **Event Owner / Organiser:** The authorised user who creates an event and uploads photographs.
- **Attendee:** A user who accesses their photographs via a selfie and the facial recognition process.

4. CATEGORIES OF PERSONAL DATA PROCESSED

Photify processes personal data in the following categories in the course of service delivery. The data requested from you varies depending on the feature used and the role type (attendee / organiser).

4.1 Identity and Contact Data

- First name and surname
- Username (where applicable)
- E-mail address
- Mobile telephone number
- Verification code (OTP) communication records
- Account creation date

4.2 Biometric Data — Special Categories of Personal Data

Processed within the scope of Photify's core service feature of facial recognition and photo matching:

- Selfie photograph taken at the time of account creation (facial reference image)
- Face vector (face embedding) extracted from the selfie — consisting of a numerical representation that cannot be reverse-engineered to the original photograph
- Mathematical parameters relating to facial geometry
- Matching scores and matching records generated by the facial recognition algorithm

These data are processed solely for the purpose of delivering event photographs to the relevant user. They are not used for identity verification, surveillance, profiling, behavioural analysis, or marketing purposes; they are not sold or transferred to third parties.

4.3 Event and Photo Data

- Event code, QR code information, date, and name of events attended
- Photograph and video files uploaded or assigned to the user
- Photo metadata (upload date, file size, resolution, EXIF-cleaned information)
- Event statistical data (number of photos uploaded, number of matches)

4.4 Usage, Device, and Technical Data

- IP address (may be anonymised)
- Device model, manufacturer, operating system and version
- Application version and language preference
- Login date/time and session duration
- In-app behaviour (screens opened, events viewed)
- Crash logs, error reports, and performance data
- Push notification token (Firebase / APNs)

4.5 Location Data (Permission-Based)

- Approximate or precise location (only during event QR scanning and when device permission is enabled)
- Where location permission is denied, the Application continues its core functionality; only location-based recommendations are unavailable

4.6 Payment and Invoice Data

- Billing name, surname, and billing address
- Payment amount, date, order number, and payment status
- Invoice number and tax identification number (for corporate customers)

Photify does not store your card number, CVV, or bank account details. All payments are processed through a PCI-DSS compliant payment provider (e.g., Iyzico), directly within the payment provider's infrastructure.

4.7 Marketing and Communication Preferences

- E-mail newsletter subscription status
- Push notification preferences
- Marketing segmentation data (only with explicit consent)
- Opened/clicked e-mail data (for campaign effectiveness measurement)

4.8 Request and Complaint Data

- Support request content
- Feedback and survey responses
- Complaint and dispute records

5. LEGAL BASES FOR PROCESSING PERSONAL DATA

Photify processes personal data only where at least one of the following legal bases is present:

5.1 KVKK Article 5/2 — General Personal Data

- (a) Establishment or Performance of a Contract: Operations such as account creation, photo upload, and payment processing — necessary for the performance of the Membership Agreement.
- (b) Legal Obligation: Tax, invoice, anti-money laundering legislation, court/prosecution requests.
- (c) Establishment, Exercise, or Defence of a Right: Dispute resolution, responses to legal claims.
- (d) Legitimate Interest: Improving service quality, fraud prevention, account security, system analytics — provided this does not prejudice your fundamental rights and freedoms.

5.2 KVKK Article 6/2 — Special Categories of Personal Data (Biometric)

Face vectors and selfie photographs are processed ONLY after obtaining your EXPLICIT CONSENT. Photify does not rely on any of the exceptions in KVKK Art. 6/3 for processing biometric data; explicit consent is obtained in all circumstances.

Your explicit consent:

- Is obtained via a separate, granular consent screen during the account creation flow
- Is informed, freely given, and revocable
- May be withdrawn from your account at any time; your biometric data will be deleted within at most 7 days from your withdrawal request
- Withdrawal of explicit consent does not invalidate processing carried out prior to such withdrawal

5.3 GDPR Article 6 — General Data (for users resident in the EU)

- Article 6(1)(a) Consent: Processing based on explicit consent (marketing, biometric data).
- Article 6(1)(b) Contract: Performance of the Membership Agreement.
- Article 6(1)(c) Legal Obligation: Statutory obligations.
- Article 6(1)(f) Legitimate Interest: Fraud prevention, service security, product improvement.

5.4 GDPR Article 9 — Special Category Data

- Article 9(2)(a) Explicit Consent: The sole legal basis for processing biometric data — explicit and specific consent.

6. PURPOSES OF PROCESSING PERSONAL DATA

The collected personal data are processed for the following purposes within the framework of the relevant legal basis:

6.1 Provision of the Service

- Account creation, identity verification (OTP), session management
- Event creation, invitation link / QR code generation
- Photo and video upload, storage, and distribution
- Photo matching via face vector (only with explicit consent)
- Presentation of matched photographs to the user

6.2 Payment and Invoicing

- Order processing and payment collection
- Invoice issuance and statutory retention
- Management of refund requests

6.3 Account and Service Security

- Detection and prevention of unauthorised access
- Protection against account hijacking attempts
- Detection of fraudulent accounts and bots
- Access logs and audit trails

6.4 Service Improvement and Analytics

- Application performance, error tracking, crash analysis
- Anonymous/aggregate analysis of usage trends
- Measurement of facial recognition algorithm accuracy rates (using anonymised samples)

6.5 Marketing and Communication

- E-newsletter distribution (only with explicit consent)
- New feature announcements
- Campaign and discount notifications
- Satisfaction surveys

All marketing-related e-mail and SMS communications are conducted within the framework of Law No. 6563 on the Regulation of Electronic Commerce (“ETK”) and the Message Management System (“İYŞ”) rules. You may withdraw your consent at any time via İYŞ.

6.6 Fulfilment of Statutory Obligations

- Tax and accounting legislation (Tax Procedure Law No. 213)
- Requests from authorised judicial/administrative authorities
- Obligations under KVKK, GDPR, and related legislation

6.7 Dispute Resolution

- Establishment, exercise, or defence of legal claims
- Detection and pursuit of contractual breaches

7. METHODS OF COLLECTING PERSONAL DATA

Your personal data are collected via the following channels:

- Directly from you: Form entries within the Application, account creation, selfie capture, photo upload, support requests
- Automatically: IP address, device information, cookies and similar tracking technologies, session data
- From third parties: Attendance record assigned to you by the event organiser; where social login is used (Apple, Google), limited identity information from those providers within the scope of your consent
- Within content: Facial images of other attendees or third parties who appear in event photographs (for further information, see Section 11)

8. THIRD PARTIES TO WHOM PERSONAL DATA IS TRANSFERRED

Photify shares personal data with data processors in the following categories only to the extent necessary for service delivery. Written Data Processing Agreements (DPA) have been executed with all third parties.

8.1 Cloud Infrastructure and Storage

- Provider: Amazon Web Services, Inc. (AWS)
- Services: AWS S3 (photo and file storage), AWS EC2 / RDS (application and database servers)

- Certifications: ISO 27001, ISO 27017, ISO 27018, SOC 2 Type II, PCI-DSS
- Region: EU and/or Turkey region preference is applied

8.2 Facial Recognition and Image Processing

- Provider: AWS Rekognition or equivalent facial recognition service
- Service: Face vector extraction and matching
- Processing Location: EU or Turkey region

Photify operates with the facial recognition provider under a DPA framework; the provider may not use face vectors for other customers, for model training, and is required to delete them upon completion of the process.

8.3 Payment Service Providers

- Provider: İyzi Ödeme ve Elektronik Para Hizmetleri A.Ş. (İyzico)
- Certifications: PCI-DSS Level 1, BDDK licensed
- Data Processed: Card details are transmitted directly to İyzico; Photify does not see or store card data

8.4 SMS / OTP Verification

- Provider: Netgsm İletişim ve Bilgi Teknolojileri A.Ş. and/or Twilio Inc.
- Service: OTP code delivery, transaction notifications

8.5 Push Notifications

- Provider: Firebase Cloud Messaging (Google LLC) and/or Apple Push Notification Service
- Service: Mobile notification delivery

8.6 Analytics and Performance

- Providers: Firebase Analytics, Sentry / Crashlytics (application error tracking)
- Service: Anonymised usage analytics, crash reports

8.7 Communication and E-mail

- Providers: SendGrid, Postmark, or Mailgun (transactional e-mail)
- Service: Password reset, invoice, and notification e-mails

8.8 Customer Support

- Provider: Intercom, Zendesk, or equivalent support platform
- Data Processed: Request content, e-mail, screenshots (to the extent shared by you)

8.9 Sharing with Legal Authorities

In the event of a statutory obligation such as a court order, prosecution request, or KVKK Board decision, your data may be shared with competent authorities. Such disclosures are made within the limits of applicable legislation and only to the extent required; where possible, you will be notified.

8.10 In the Event of Merger / Transfer

In the event of a merger, partial/full transfer, or insolvency involving Photify, user data may be transferred to the new data controller. In such circumstances, the new data controller shall be obligated to provide at least the same level of protection as this Policy, and you will be notified of the change in advance.

8.11 Prohibition on Advertising and Data Sale

Photify does not share, sell, or market your personal data — in particular your biometric data — with third parties for advertising purposes. This also covers transactions falling within the definition of “sale of personal information” under the CCPA.

9. INTERNATIONAL TRANSFERS OF PERSONAL DATA

Some of the cloud infrastructure, AI, and communications services utilised by Photify may be processed on servers located outside Turkey. Such transfers are carried out under the following safeguards.

9.1 Transfers under KVKK Article 9

- Transfers are made to countries declared by the KVKK Board as providing adequate protection
- Where transfers are made to countries not providing adequate protection, the data controllers in Turkey and in the destination country undertake adequate protection in writing, and KVKK Board approval is obtained
- Transfers of special categories of data (biometric) requiring explicit consent are also subject to separate explicit consent

9.2 Transfers under GDPR Articles 44-49

- Transfers to countries subject to an adequacy decision (Article 45)
- Use of Standard Contractual Clauses (SCC) approved by the European Commission (Article 46)
- Operation under Binding Corporate Rules (Article 47)
- Transfers where your explicit consent (Article 49) is present
- Operation with providers certified under the EU-US Data Privacy Framework

9.3 Transfer Security

- All international transfers are encrypted via TLS 1.3
- Biometric data is encrypted with AES-256 during transfer
- No data transfer is made without execution of a DPA with the transfer recipient
- Data residency preferences are offered in regions where supported

10. RETENTION PERIODS FOR PERSONAL DATA

Your personal data will be deleted, destroyed, or anonymised upon the cessation of the purpose for which they were processed or upon expiry of the periods prescribed by law.

10.1 Biometric Data (Facial Images and Vectors)

- Active account: For the duration the account remains active
- Inactive account: At most 30 days from the last event / session date
- Account deletion request: Deleted in full within at most 7 days of the request
- Withdrawal of explicit consent: Deleted within at most 7 days of withdrawal

10.2 Event Photo and Video Files

- 12 months (1 year) from upload
- Automatically deleted or anonymised after 12 months
- The event organiser may delete earlier
- May be extended in the event of a statutory obligation

10.3 Account and Identity Information

- Active account: Retained
- Account deletion: Anonymised or deleted within 30 days of the request; deleted from backups within 90 days
- Information required by tax/invoice legislation: 10 years (Tax Procedure Law)

10.4 Technical Logs and Security Records

- Access and security logs: 6 months
- Error and performance logs: 90 days
- May be extended in the event of a criminal/legal dispute

10.5 Marketing Preferences

- Until explicit consent is withdrawn or the account is deleted
- Opt-out record via İYŞ may be retained indefinitely (to prevent re-sending)

10.6 Complaint and Support Records

- 3 years from closure of the request
- In accordance with the applicable statutory period if longer

11. THIRD PARTIES INCIDENTALLY CAPTURED IN EVENT PHOTOGRAPHS

As Photify operates using facial recognition technology, event photographs may incidentally contain the faces of other users attending the event or third parties who appear in the frame. In this regard, users should be aware of the following:

- The event organiser bears responsibility for fulfilling the necessary notification obligations and, where required, obtaining explicit consent from persons who will be photographed at the event
- Photify does not retain the face vectors of third parties who incidentally appear in event photographs and who are not registered on the system; matching is performed solely for active Users
- If you notice that your face appears in a photograph but you are not registered with Photify, you may contact us at kvkk@photify.studio to request removal of the photograph from publication or blurring of your face
- Such requests will be concluded within at most 30 days

Photify expressly states that the obligation to obtain consent from third parties who appear in the frame rests with the event organiser; however, in the event of an application, the necessary deletion/anonymisation operation will be carried out in all cases.

12. RIGHTS OF THE DATA SUBJECT

12.1 Rights under KVKK Article 11

- The right to learn whether your personal data is being processed
- If processed, the right to request information in this regard
- The right to learn the purpose of processing and whether it is being used in accordance with that purpose
- The right to know third parties to whom data is transferred, domestically or abroad
- The right to request rectification where data is incomplete or inaccurate
- The right to request erasure or destruction under the framework of KVKK Article 7
- The right to request notification to third parties to whom data has been transferred of rectification/erasure
- The right to object to a decision adverse to you arising solely from automated analysis
- The right to claim compensation for damages arising from unlawful processing

12.2 Additional Rights under GDPR Articles 15-22

- Article 15 — Right of Access: The right to request a copy of your data in a structured format.
- Article 16 — Right to Rectification: Rectification of inaccurate/incomplete data.
- Article 17 — Right to Erasure ("Right to be Forgotten"): Erasure of data under certain conditions.

- Article 18 — Right to Restriction of Processing: Suspension of processing even where data continues to be retained.
- Article 20 — Right to Data Portability: The right to receive your data in a structured, machine-readable format (e.g., JSON, CSV) and to transfer it to another data controller.
- Article 21 — Right to Object: The right to object to processing based on legitimate interests or to direct marketing.
- Article 22 — Right not to be Subject to Automated Individual Decision-Making: The right not to be subject to decisions based solely on automated processing that produce legal or similarly significant effects.

12.3 CCPA Rights (for California Residents)

- Right to Know
- Right to Delete
- Right to Opt-Out of Sale of Personal Information — Photify does not sell data
- Right to Non-Discrimination

12.4 Exercise of Rights

To exercise the above rights, you may apply through the following channels:

- E-mail: kvkk@photify.studio (for KVKK and data protection requests)
- In-app: Account > Privacy > Submit Request menu
- Written application: Vadi Istanbul Park Etari, Ayazağa, Kemerburgaz Cd. D:7A Blok, 34475 Sarıyer/Istanbul

Requests will be concluded within at most 30 days pursuant to KVKK Article 13, and within 1 month (extendable by a further 2 months where necessary) pursuant to GDPR Article 12.

Applications are in principle free of charge. However, where the operation entails an additional cost, a fee may be charged in accordance with the tariff determined by the KVKK Board.

12.5 Right to Lodge a Complaint

If you consider that your application has not been addressed satisfactorily by us, you have the right to lodge a complaint with the following supervisory authorities:

- Turkey: Personal Data Protection Authority — www.kvkk.gov.tr — Nasuh Akar Mah. Ziyabey Cad. No:1 06520 Balgat / Ankara
- EU: The data protection authority of the Member State in which you are resident (e.g., Germany: BfDI; France: CNIL; Ireland: DPC; Spain: AEPD)
- United Kingdom: Information Commissioner's Office (ICO) — ico.org.uk
- California: California Attorney General — oag.ca.gov/privacy

13. CHILDREN'S PRIVACY

Photify is not designed for use by persons under the age of 18 and does not knowingly collect personal data from users under the age of 18.

- You are asked to declare that you are over 18 years of age at the time of account creation
- If, as a parent or guardian, you discover that your child has provided data to us, you may notify us at kvkk@photify.studio; such data will be deleted within at most 7 days
- Where event photographs include images of persons under the age of 18, the event organiser bears responsibility for obtaining parental/guardian consent
- Processing requests involving biometric data relating to persons under the age of 18 are refused; existing data is deleted

14. AUTOMATED DECISION-MAKING AND PROFILING

Photify's facial recognition system performs an automated mathematical calculation to match event photographs with you. This operation:

- Does not constitute a decision producing legal effects or similarly significantly affecting you (within the meaning of GDPR Article 22)
- Is carried out solely on the basis of your explicit consent
- Allows for manual review: if you identify an incorrect match, you may use the "This photograph does not belong to me" notification to request manual review of the erroneous match
- Is not used for profiling: it is not used for behavioural analysis, credit scoring, insurance, recruitment decisions, or similar purposes

15. COOKIES AND TRACKING TECHNOLOGIES

The Photify Application and website use cookies and similar technologies for the delivery and improvement of services.

15.1 Strictly Necessary Cookies

- Session management, authentication, security
- Do not require explicit consent; disabling them renders the Application non-functional

15.2 Performance and Analytics Cookies

- User behaviour analysis (anonymised)
- Activated with explicit consent
- Services such as Firebase Analytics, Sentry

15.3 Marketing and Targeting Cookies

- Campaign measurement, retargeting
- Activated with explicit consent
- Consent may be withdrawn at any time

15.4 Cookie Preference Management

You may change your cookie preferences at any time via your device settings or the in-app Settings > Privacy > Cookie Preferences menu. Please refer to our separate Cookie Policy document for detailed information.

16. TECHNICAL AND ADMINISTRATIVE MEASURES FOR THE SECURITY OF PERSONAL DATA

16.1 Technical Measures

- Data is encrypted at rest using AES-256 and in transit using TLS 1.3
- Biometric data is kept in a separate encrypted partition
- Facial images are not retained in raw form; only mathematical vectors are retained after matching
- Access Control Lists (ACL) and role-based access control (RBAC)
- Multi-factor authentication (MFA) is mandatory on all administrator accounts
- Regular vulnerability scanning and penetration testing
- Automated backup and disaster recovery plan
- Independent security audits (annual)
- Web Application Firewall (WAF) and DDoS protection

16.2 Administrative Measures

- Confidentiality agreements are executed with all personnel
- Annual data security training for personnel
- Need-to-know basis data access policy
- All access privileges of departing personnel are revoked within 24 hours
- DPA (Data Processing Agreement) executed with all suppliers
- Annual risk assessment and Data Protection Impact Assessment (DPIA)

17. PERSONAL DATA BREACH NOTIFICATION

In the event of a data breach involving unauthorised acquisition, loss, or alteration of your personal data:

- Notification will be made to the KVKK Board within 72 hours (KVKK Data Breach Notification Communiqué)
- Notification will be made to EU Data Protection Authorities within 72 hours under GDPR Article 33
- Where the breach is likely to result in a high risk to your fundamental rights and freedoms, you will also be notified without undue delay under GDPR Article 34
- The nature of the breach, affected data categories, possible consequences, and measures taken/to be taken will be included in the notification
- Data breach records are maintained for submission to KVKK Board inspections

18. CONSENT MANAGEMENT

For operations requiring explicit consent, your consent:

- Is obtained in relation to a specific subject matter, on an informed basis, and by free will
- Is presented separately via granular screens (e.g., separate screen for biometric data, separate screen for marketing)
- Is designed so that withdrawal is as easy as granting consent
- For withdrawal: in-app Settings > Privacy > My Consents menu
- Withdrawal does not affect processing carried out prior to the date of withdrawal
- Records of the existence of explicit consent are retained within the scope of our burden of proof obligations

19. MOBILE APPLICATION PERMISSIONS AND DEVICE-LEVEL DATA ACCESS

The Photify mobile application requests certain device-level permissions for service delivery. All permissions may be withdrawn at any time from device settings; denial of permission does not prevent basic account use other than limiting the relevant feature.

19.1 Camera Permission

- Purpose: Taking a selfie/facial reference image, capturing event photographs, scanning QR codes.
- Legal basis: Performance of contract; in the case of biometric data processing, additionally explicit consent.
- Data minimisation: Camera access is open only at the moment of active use, during the operation initiated by the Member; no background camera access occurs.

19.2 Photos Library Permission

- Purpose: Selecting an existing selfie, uploading photographs by the event organiser, saving matched photographs to the user's device.
- Legal basis: Performance of contract.

- Data minimisation: Photify does not scan the user's gallery; it accesses only media files expressly selected by the Member. iOS "Limited Photos" access mode is supported.

19.3 Location Permission

- Purpose: Optional event verification (proximity to the event venue), QR/nearby event suggestions.
- Legal basis: Explicit consent (optional feature); denial does not prevent the core service.
- Data minimisation: Photify does not continuously track the user's location; location is obtained only at the moment the feature is activated and is not retained where not required.

19.4 Notification Permission (Push Notification)

- Purpose: Transactional notifications (new matched photograph, event status update, security alert) and marketing notifications with separate consent.
- Legal basis: Performance of contract for transactional notifications; explicit consent for marketing notifications (within the framework of Law No. 6563 ETK and İYŞ).
- Data minimisation: Push notification tokens are retained only for notification delivery; where notifications are disabled, the token is not retained.

19.5 App Tracking Transparency (ATT) / Advertising Identifiers

On iOS devices, advertising identifiers (IDFA / AAID) are not processed without the user's explicit consent within the framework of Apple App Tracking Transparency (ATT); on Android devices, they are not processed within the framework of Google Advertising ID (AAID) settings.

- Non-granting or withdrawal of ATT permission does not affect Photify's core face matching service; only optional campaign measurement and third-party SDK tracking features are limited.
- Detailed information on advertising identifiers, third-party SDKs, and tracking technologies is set out in the Photify Cookie Policy.

20. DIFFERENTIATION OF CONSENT TYPES

Photify treats the requirement that explicit consent be "specific, informed, and freely given" as its guiding principle, in accordance with KVKK Board guidelines and GDPR Article 7. Accordingly, consents for different purposes are obtained on entirely separate, granular screens, and each may be independently withdrawn. The following table summarises the different consent types processed by Photify and the documents in which they are regulated.

Consent Type	Scope	Primary Document
Biometric Data	Selfie and face vector processing; solely for the purpose of matching with event photographs.	Privacy Policy
Marketing Consent	E-newsletter, campaign notification, new feature announcement, segmented promotional content.	Privacy Policy + Terms
Commercial Electronic Message	Commercial SMS, e-mail, or push notification under Law No. 6563 ETK; managed via İYŞ.	Terms + Privacy Policy
Cookie / Analytics / Tracking	Non-essential cookies, third-party SDK tracking, IDFA / App Tracking Transparency, advertising measurement.	Cookie Policy

Non-granting or withdrawal of one type of consent does not affect the validity of other consent types. For example: a Member who provides biometric data consent is not required to grant marketing permission; likewise, a Member who grants marketing permission may decline biometric data processing (in which case the face matching service cannot be used). All consent preferences may be viewed and managed from the Settings > Privacy > My Consents menu.

21. APP STORE PRIVACY SUMMARY (APP PRIVACY SUMMARY)

The following table summarises the data types declared by us in the Apple App Store and Google Play “Data Safety / App Privacy” sections and the purposes for which such data is processed by Photify. Our declarations are kept up to date in our store profiles; in the event of any discrepancy, the actual service practice, the detailed sections of this Policy, and the latest version of the store profiles shall prevail.

Data Category	Purpose of Use
First name, surname, e-mail, phone	Account creation, identity verification, communication, support
Selfie / face vector (biometric)	Matching of event photographs (only with explicit consent)
Photos and videos	Delivering, storing, and distributing event content to relevant attendees
Device and usage data	Security, performance, crash/error analysis, fraud prevention
Location data (optional)	Optional event verification, QR operations (with explicit consent)
Payment information	Purchase, invoicing (card details not stored by Photify)
Notification token	Push notification delivery (transactional and marketing with consent)
Advertising identifiers (IDFA/AAID)	Advertising/campaign measurement only if ATT permission granted

22. APP STORE PRIVACY AND PERMISSION INTEGRITY STATEMENT

The following statements have been consolidated at a single point by the Data Controller to ensure alignment between the privacy summaries presented to users by the Apple App Store and Google Play and this Policy.

22.1 iOS Application Permission Use Statement

In the Photify iOS application, camera, photo library, notification, location, and tracking permissions are used solely for the operation of the relevant feature and only after explicit permission has been obtained from the user. Camera access is used for selfie capture and face matching; photo library access is used for photo upload and saving; notification permission is used for matched photo and event notifications; and location permission is used solely for optional event verification or location-based features. Users may withdraw these permissions at any time from device settings. The core service is not dependent on non-essential marketing and tracking permissions.

22.2 ATT / IDFA Distinction

Photify does not track the user across applications and websites owned by other companies without Apple App Tracking Transparency (ATT) permission. Access to the IDFA (Identifier for Advertisers) is permissible only where the user has granted ATT permission and solely for advertising or campaign measurement purposes. The biometric face matching service is not dependent on IDFA or tracking permission; the core face matching feature remains fully functional even if the user declines ATT permission.

22.3 App Store Privacy Nutrition Label Compliance

The data collection categories and purposes of use declared in App Store Connect are kept up to date in a manner consistent with the data categories described in this Policy and the SDKs used in the application. The Data Controller regularly reviews App Store Connect privacy declarations, SDKs used in the application, and data collection realities; and verifies the accuracy of declaration information before each application update. In the event of a conflict between this Policy and the App Store declaration, the provision affording greater protection to the user shall apply, and the inconsistency shall be remedied as soon as possible.

23. AMENDMENTS TO THE POLICY

- Material amendments will be announced at least 30 days in advance by e-mail and in-app notification
- Where an amendment requires explicit consent, new explicit consent will be obtained
- The version number and revision date are updated with each update
- Access to previous versions may be provided upon request to kvkk@photify.studio

24. CONTACT AND APPLICATION

For any questions, comments, or complaints regarding this Policy and our data protection practices, please contact us:

- General Enquiries: info@photify.studio
- KVKK Applications: kvkk@photify.studio
- Postal Address: Vadi Istanbul Park Etarı, Ayazağa, Kemerburgaz Cd. D:7A Blok, 34475 Sarıyer/İstanbul
- Website: <https://photify.studio>

Photify — Your personal data is secure.

KVKK | GDPR | CCPA Compliant

© 2025 Photify | All Rights Reserved